



U.S. Department
of Transportation

**Pipeline and Hazardous
Materials Safety
Administration**

January 05, 2022

1200 New Jersey Avenue, SE
Washington, DC 20590

DOT-SP 11289
(FOURTEENTH REVISION)

EXPIRATION DATE: 2025-11-30

(FOR RENEWAL, SEE 49 CFR 107.109)

1. GRANTEE: Worthington Cylinders Corporation
Columbus, OH
2. PURPOSE AND LIMITATIONS:
 - a. This special permit authorizes the manufacture, marking, sale and use of DOT Specification 39 cylinders which deviate from the visual inspection requirements. This special permit provides no relief from the Hazardous Materials Regulations (HMR) other than as specifically stated herein. The most recent revision supersedes all previous revisions.
 - b. The safety analyses performed in development of this special permit only considered the hazards and risks associated with transportation in commerce. The safety analyses did not consider the hazards and risks associated with consumer use, use as a component of a transport vehicle or other device, or other uses not associated with transportation in commerce.
 - c. In accordance with 49 CFR 107.107(a) party status may not be granted to a manufacturing permit. These packagings may be used in accordance with 49 CFR 173.22a.
3. REGULATORY SYSTEM AFFECTED: 49 CFR Parts 106, 107 and 171-180.
4. REGULATIONS FROM WHICH EXEMPTED: 49 CFR §§ 172.203(a) and 172.301(c) for marking the special permit number and § 178.35(c)(3)(ii) in that the inside of each cylinder must be visually inspected before closing in ends, except as specified herein.
5. BASIS: This special permit is based on the application of Worthington Cylinders dated November 18, 2021, submitted in accordance with § 107.109.

Tracking Number: 2021114982

6. HAZARDOUS MATERIALS (49 CFR 172.101):

Hazardous Materials Description			
Proper Shipping Name	Hazard Class/ Division	Identification Number	Packing Group
All materials that are currently authorized in DOT Specification 39 cylinders	As Appropriate	As Appropriate	N/A

7. SAFETY CONTROL MEASURES:

- a. PACKAGING: Packaging prescribed are DOT Specification 39 cylinders with a service pressure of 900 psig or less and a maximum water capacity of 3 pounds. Cylinders must conform to all requirements of § 178.65 and § 178.35 except as follows:

§ 178.35(c)(3)(ii) Complete external visual inspection of each cylinder is required. A cylinder with an external imperfection must be internally inspected prior to acceptance. Internal visual inspection is required on one cylinder out of every lot of 1,000 or less. A "lot" is as defined in § 178.65(f)(3).

- b. OPERATIONAL CONTROLS: Worthington Cylinder Corporation must maintain and implement quality control procedures which will ensure the detection of cylinder defects during the cylinder manufacturing process.

- c. MARKING: The marking requirements of §§ 172.203(a) and 172.301(c) are waived.

8. SPECIAL PROVISIONS:

- a. In accordance with the provisions of Paragraph (b) § 173.22a, persons may use the packaging authorized by this special permit for the transportation of the hazardous materials in paragraph 6, only in conformance with the terms of this special permit.

- b. A person who is not a holder of this special permit, but receives a packaging covered by this special permit, may reoffer it for transportation provided no modification or change is made to the packaging and it is offered for transportation in conformance with this special permit and the HMR.

- c. Each packaging manufactured under the authority of this special permit must be marked with a registration symbol designated by the Office of Hazardous Materials Safety for a specific manufacturing facility.
 - d. A current copy of this special permit must be maintained at each facility where the package is manufactured under this special permit, must be made available to a DOT representative upon request.
 - e. Transportation of Division 2.1 (flammable gases) and 2.3 (toxic gases) are not authorized aboard cargo vessel or aircraft unless specifically authorized in the Hazardous Materials Table (§ 172.101).
 - f. Transportation of oxygen is only authorized when in accordance with § 175.501.
9. MODES OF TRANSPORTATION AUTHORIZED: Motor vehicle, rail freight, cargo vessel, and cargo aircraft only. (See paragraphs 8.e. and 8.f. for restrictions)
10. MODAL REQUIREMENTS: A current copy of this special permit must be carried aboard each cargo vessel and aircraft used to transport packages covered by this special permit. The shipper must furnish a current copy of this special permit to the air carrier before or at the time the shipment is tendered.
11. COMPLIANCE: Failure by a person to comply with any of the following may result in suspension or revocation of this special permit and penalties prescribed by the Federal hazardous materials transportation law, 49 U.S.C. 5101 et seq:
- o All terms and conditions prescribed in this special permit and the Hazardous Materials Regulations, Parts 171-180.
 - o Persons operating under the terms of this special permit must comply with the security plan requirement in Subpart I of Part 172 of the HMR, when applicable.
 - o Registration required by § 107.601 et seq., when applicable.

Each "Hazmat employee", as defined in § 171.8 who performs a function subject to this special permit must receive training on the requirements and conditions of this special permit in addition to the training required by §§ 172.700 through 172.704.

No person may use or apply this special permit, including display of its number, when the special permit has expired or is otherwise no longer in effect.

Under Title VII of the Safe, Accountable, Flexible, Efficient Transportation Equity Act: A Legacy for Users (SAFETEA-LU) – “The Hazardous Materials Safety and Security Reauthorization Act of 2005” (Pub. L. 109-59), 119 Stat. 1144 (August 10, 2005),

amended the Federal hazardous materials transportation law by changing the term "exemption" to "special permit" and authorizes a special permit to be granted up to two years for new special permits and up to four years for renewals.

12. **REPORTING REQUIREMENTS:** Shipments or operations conducted under this special permit are subject to the Hazardous Materials Incident Reporting requirements specified in 49 CFR §§ 171.15 - Immediate notice of certain hazardous materials incidents, and 171.16 - Detailed hazardous materials incident reports. In addition, the grantee(s) of this special permit must notify the Associate Administrator for Hazardous Materials Safety, in writing, of any incident involving a package, shipment or operation conducted under terms of this special permit.

Issued in Washington, D.C.:



for William Schoonover
Associate Administrator for Hazardous Materials Safety

Address all inquiries to: Associate Administrator for Hazardous Materials Safety, Pipeline and Hazardous Materials Safety Administration, U.S. Department of Transportation, East Building PHH-13, 1200 New Jersey Avenue, Southeast, Washington, D.C. 20590.

Copies of this special permit may be obtained by accessing the Hazardous Materials Safety Homepage at <https://www.phmsa.dot.gov/approvals-and-permits/hazmat/special-permits-search>. Photo reproductions and legible reductions of this special permit are permitted. Any alteration of this special permit is prohibited.

PO: TG